

Z A A H I

Real Estate OS

Document: Founder Protection Addendum — Zharkyn Ryspayev ("Zhan")
Prepared for: Rodolphe Belin ("Rudi") — Principal Investor; the Shareholders Agreement schedule
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Subject: Zharkyn Ryspayev (hereinafter "Zhan"), Founder, CEO/CTO
Status: Template structure — exact contractual language subject to counsel review at formal SHA execution

Orientation

This document specifies two founder-specific protections for Zharkyn Ryspayev as Founder and CEO/CTO of ZAAHI:

1. **Founder Salary Floor** — guaranteed minimum monthly compensation from the Platform operating account while Zhan actively serves as CEO/CTO.
2. **Tag-Along Rights and Right of First Refusal** — on any share transfer by Rudi.

These protections are independent of and additional to:

- Zhan's base equity (10 % of Agency; 80 % of Platform) as set out in `MOU_RUDI.md` §2 and `TERM_SHEET.md`.
- Zhan's majority control of the Platform (80 % makes Platform shareholder decisions Zhan's call).
- Zhan's upgraded Agency position post-Sunset (10 % → 45 % automatically at the sunset event; see `MOU_RUDI.md` §4).
- Zhan's 2-year reverse vesting with 6-month cliff (per `MOU_RUDI.md` §6).
- Zhan's non-compete and non-solicit commitments (per `TERM_SHEET.md`).

These protections are codified in a dedicated schedule to the Shareholders Agreement, approved by all three Shareholders. They do not reduce Rudi's economic entitlements or governance rights.

1. Founder Salary Floor

1.1 Summary

While Zhan actively serves as CEO/CTO of the Platform, the Platform (ADGM HoldCo) shall pay Zhan a **monthly salary of not less than AED 30,000-50,000**, calibrated at SHA execution based on the Platform's cash position and the prevailing UAE market rate for founder-CEO compensation at a pre-Series-A technology company.

1.2 Calibration

The specific Founder Salary figure within the AED 30,000-50,000 range is calibrated at SHA execution and reviewed annually at the Annual General Meeting. Suggested calibration framework:

Year	Suggested base salary (AED / month)	Rationale
Year 1	35,000 - 40,000	Platform company forms after first deal; initial revenue ramp
Year 2	40,000 - 45,000	Revenue validated; team scaling; pre-Series A
Year 3	45,000 - 50,000	Post-Series A (if raised); platform revenue compounding
Year 4+	Market-benchmarked	Post-platform-maturity; benchmark to UAE tech CEO market

1.3 Payable source

- Salary is paid **monthly from the Platform (ADGM HoldCo) operating account; pro-rated for partial months.**
- Funded from the 70 % Platform Development Fund allocation of agency net profits (per `PROFIT_DISTRIBUTION_MECHANICS.md`).
- Tax and social security: treated as employment income under UAE Federal Decree-Law 33/2021; end-of-service gratuity accrued per UAE Labour Law.

1.4 Conditions

- Payable while Zhan actively serves as CEO/CTO of the Platform (CTO-only, CEO-only, or combined roles during different phases).
- Suspended if Zhan voluntarily takes extended leave of absence exceeding 30 consecutive days (except for medically-justified leave or Board-approved sabbatical).

- **Terminated** if Zhan voluntarily resigns.
- **Terminated** if Zhan is terminated for Cause (as defined in the Shareholders Agreement).
- **6 months' severance** paid as a lump sum or monthly continuation (at Zhan's election) if Zhan is terminated without Cause.

1.5 Priority

The Founder Salary is a priority operating expense of the Platform. It accrues monthly and must be paid before any quarterly dividend declaration. If in any quarter the Platform's cash position cannot support both the salary and a dividend, the salary is paid first and the dividend is deferred or reduced.

2. Tag-Along Rights and Right of First Refusal on Rudi transfers

2.1 Summary

If Rudi proposes to transfer any of his shares (in either the Agency or the Platform) to a third party, Zhan is entitled to:

- **Tag-Along Right** — sell a proportional amount of his own shares in the same entity on the same terms; and
- **Right of First Refusal (ROFR)** — match the third-party offer and acquire Rudi's shares instead.

These rights apply in parallel with any Dymo-level equivalent rights and any Company-level ROFR.

2.2 Exercise mechanics

- **Notice period:** minimum 30 days from Rudi's transfer notice.
- **Exercise window:** 30 days.
- **Sequencing:** Company ROFR → Zhan + Dymo ROFR (pro-rata) → Zhan + Dymo Tag-Along (pro-rata) → third-party transfer.
- **Permitted transfers** (wholly-owned entities, family estate planning, consented transfers) are exempt.

Detailed exercise language is deferred to SHA drafting by UAE counsel.

3. Summary of Zhan's protection package

Protection	Value	Section
Equity — Agency (pre-sunset)	10.0 %	MOU_RUDI.md §2
Equity — Agency (post-sunset)	45.0 %	MOU_RUDI.md §4
Equity — Platform	80.0 % (controlling)	MOU_RUDI.md §2
Founder Salary Floor	AED 30,000 – 50,000 / month from Platform	This Addendum §1
Severance without Cause	6 months (lump sum or continuation)	This Addendum §1.4
Tag-Along on Rudi transfers	Proportional participation	This Addendum §2
ROFR on Rudi transfers	30-day option to match	This Addendum §2
Founder vesting	2 years / 6-month cliff	MOU_RUDI.md §6
Non-compete	12-month post-departure	TERM_SHEET.md (to be drafted)
IP ownership	Assigned to Platform at nil consideration	MOU_RUDI.md §7

4. Symmetry with Dymo's protections

Zhan and Dymo receive structurally identical protection packages, differentiated only by the entity anchor:

Protection	Zhan (CEO/CTO · Platform-focused)	Dymo (Operations Principal · Agency-focused)
Salary-paying entity	Platform (ADGM HoldCo)	Agency (Dubai Mainland LLC)
Salary range	AED 30,000 – 50,000 / month	AED 30,000 – 50,000 / month
Vesting	2 years / 6-month cliff	2 years / 6-month cliff
Severance without Cause	6 months	6 months
Tag-Along on Rudi transfers	Yes	Yes
ROFR on Rudi transfers	Yes (30 days)	Yes (30 days)

Both founders draw salaries from the entity they lead; neither protection displaces the other.

5. Open items for UAE counsel

To be finalised at SHA execution:

1. **Founder Salary Floor calibration** — Year 1 figure agreed by the Board at SHA execution; framework for annual review at AGM.
2. **Employment contract** — Zhan's separate employment contract with the Platform (ADGM HoldCo), incorporating the Salary Floor and customary executive-employment terms (expense reimbursement, benefits, gratuity, confidentiality).
3. **Tag-Along and ROFR sequencing** — precise procedural language coordinating Company ROFR, Zhan ROFR, Dymo ROFR, and tag-along election.
4. **UAE CT / VAT treatment** — of Platform salary payment; gratuity accrual at Platform entity level.
5. **Definition of "Cause"** for termination clauses and mechanics of the 6-month severance obligation.

End of Zhan Protection Addendum. To be incorporated as a schedule to the Shareholders Agreement at execution.